

PLJ 2021 Lahore 142

Present: MASUD ABID NAQVI, J.

GHULAM MUSTAFA etc.--Petitioners

versus

MUHAMMAD NAZIR--Respondent

C.R. No. 67657 of 2017, decided on 9.10.2019.

Civil Procedure Code, 1908 (V of 1908)--

-----S. 115--Specific Relief Act, (I of 1877), Ss. 42 & 54--Suit for declaration, permanent and mandatory injunction--Dismissed--Appeal--Accepted--Shamlat deh--Forcibly blockage of passage--Entitlement for using of passage--Appearance of local commission in Court as evidence--Non-supporting of version of petitioners by DWs--Challenge to--Depositions of DW's are against factual position and DW's have not supported version of petitioners/ defendants--Appellate Court has properly perused pleadings, statements of PW's and DW's as well as documentary evidence by discussing in detail and thereafter reached at conclusion regarding controversy--Hence, findings of appellate Court are maintained upheld--With respect to interference in findings of appellate Court where there is inconsistency between trial Court and appellate Court--Appellate Court has thoroughly examined entire evidence of parties and thereafter reached at conclusion regarding controversy--Neither any misreading or non-reading of evidence on record nor any infirmity, legal or factual, has been pointed out in impugned judgment and decree passed by learned appellate court--Revision petition was dismissed. [Pp. 144] A, B & C

Malik Muhammad Azam Awan, Advocate for Petitioners.

Mr. M. Mushtaq Ahmed Dhoon and *Mrs. Naila Mushtaq Dhoon*,
Advocates for Respondent.

Date of hearing: 9.10.2019.

ORDER

Brief facts of the present revision petition are that the respondent/plaintiff filed a suit for declaration alongwith permanent and mandatory injunction against the petitioners/defendants with the averments that he is owner in possession of the suit land and he is residing in the house after raising construction over Shamlat Deh. He is using the street as passage and there is no other way available for the respondent/plaintiff. The petitioners/defendants, who are neighbours of the respondent/plaintiff forcibly blocked the passage and when the respondent/plaintiff asked the petitioners/defendants not to block the way of respondent/plaintiff they refused to accord with the demand of plaintiff, hence, the suit. The petitioners/defendants contested the suit by filing written statement and by raising legal as well as factual objections. Out of divergent pleadings of the parties, issues were framed by the learned trial Court. The parties produced

their respective evidence and after recording the same, learned trial Court **dismissed the suit** of the respondent/plaintiff *vide* judgment and decree dated 07.02.2017. Feeling aggrieved, the respondent/ plaintiff filed an appeal and the learned Additional District Judge *vide* judgment and decree dated 06.06.2017 decreed the suit of the respondent/plaintiff while accepting the appeal. Being dissatisfied, the petitioners/defendants has filed the instant Revision Petition and challenged the validity of the judgment and decree dated 06.06.2017 passed by the learned Appellate Court.

2. I have heard the arguments advanced by the learned counsel for the parties and perused the record.

3. There is no denial of the fact that the respondent/plaintiff was claiming his entitlement to use the passage on the land of Shamlat Deh which can legally be used by all the inhabitants of the village under the law. The Tehsildar/local commission appeared before the Court as PW-3 and deposed that the parties are using the passage for the last 30 years and there is no alternate passage for the respondent/plaintiff for going to his own home. The depositions of DW's are against the factual position and the DW's have not supported the version of the petitioners/defendants. The learned appellate Court has properly perused the pleadings, statements of the PW's and DW's as well as documentary evidence by discussing in detail and thereafter reached at the conclusion regarding the controversy. Hence, the findings of learned appellate Court are maintained upheld.

4. With respect to interference in the findings of appellate Court where there is inconsistency between the trial Court and appellate Court, the Hon'ble Supreme Court of Pakistan in a case reported as *Amjad Ikram vs. Mst. Asiya Kausar* (2015 SCMR 1) held that:

“Even otherwise, in case of inconsistency between the learned and the appellate Court, the latter must be given preference in the absence of any cogent reason to the contrary, as has been held by this Court in judgements reported as Madan Gopal and 4 other vs. Maran Bipari and 3 others (PLD 1969 SC 617 and Mohammad Nawaz through LRs vs. Haji Mohammad Baran Khan through LRs and others (2013 SCMR 1300)

5. Learned appellate Court has thoroughly examined the entire evidence of the parties and thereafter reached at the conclusion regarding the controversy. Neither any misreading or non-reading of evidence on record nor any infirmity, legal or factual, has been pointed out in the impugned judgment and decree passed by the learned appellate Court. Therefore, this revision petition is **dismissed**.

(Y.A.) Revision petition dismissed